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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

INDEX OF 801

ESTOPPEL APPENDIX

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under California Rules of Court, rule 3.1110, subdivisions (f) and (c); Code of Civil Procedure section 1005, subdivision (b); and Code of Civil Procedure section 128, subdivision (a)(3).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

4. The Court's authority to consider the substance is under California Rules of Court, rule 3.1110, subdivision (f) (exhibit indexing for electronically filed documents).

5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section 1005, subdivision (b), and Department 302's May 13, 2026 scheduling order.

1. PURPOSE

This index maps each 801 accepted-position exhibit identified in Plaintiff's Supplemental Request for Judicial Notice (filing item 04) to the cross-case judicial estoppel element it supports under the *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986 to 987, five-factor test, and to the rank-ordered contradiction nodes set forth in the accompanying memorandum (filing item 02).

The same rank set is paralleled by the implied-admission paragraphs under each rank in filing item 07, which identify the doctrinal effect of each contradiction on the pending 802 motions.

2. 801 ACCEPTED-POSITION EXHIBITS

1. Exhibit 801-A: 801 Anti-SLAPP MPA

- **Document:** Memorandum of Points and Authorities in Support of Defendants' Special Motion to Strike under Code of Civil Procedure section 425.16.
- **Filing date:** April 9, 2026.
- **Court record:** Filed in *Rosario v. Abdelhalim, et al.* (CGC-25-631801), San Francisco Superior Court, Department 301; verifiable on the SFTC portal and in Plaintiff's served copy.
- **Pin cites:** pp. 3 (lines 729 to 738); 6 (lines 1040 to 1042, 1065 to 1072); 9 (lines 1258 to 1274); 9 to 11 (lines 1258 to 1290); 11 (lines 1418 to 1424).

2. Exhibit 801-B: 801 Demurrer MPA

- **Document:** Memorandum of Points and Authorities in Support of Defendants' Demurrer to the First Amended Complaint.
- **Filing date:** April 13, 2026.
- **Court record:** Filed in CGC-25-631801, Department 301; verifiable on the SFTC portal and in Plaintiff's served copy.
- **Pin cites:** pp. 3 to 4 (lines 655 to 735); 5 to 6 (lines 925 to 1005).

1 **3. Exhibit 801-C: 801 Anti-SLAPP Reply**

- 2 • **Document:** Reply to Plaintiff’s Opposition to Defendants’ Special Motion to Strike.
- 3 • **Filing date:** May 5, 2026.
- 4 • **Court record:** Filed in CGC-25-631801, Department 301; verifiable on the SFTC portal and
- 5 in Plaintiff’s served copy.
- 6 • **Pin cites:** pp. 2 to 5 (lines 174 to 260); p. 3 (file transfer is “communicative” conduct).

7 **4. Exhibit 801-D: May 12, 2026 Department 301 Minute Order**

- 8 • **Document:** Minute order granting the special motion to strike under Code of Civil Procedure
- 9 section 425.16.
- 10 • **Filing date:** May 12, 2026.
- 11 • **Court record:** Entered in CGC-25-631801, Department 301; official PDF minute order
- 12 lodged with this packet and verifiable on the SFTC portal.
- 13 • **Pin cites:** order granting section 425.16 motion to strike.

14 **5. Exhibit 801-E: Notice of Related Case (CRC 3.300)**

- 15 • **Document:** Notices of related case identifying CGC-25-631801 and CGC-25-631802 as re-
- 16 lated.
- 17 • **Filing date:** Per docket in each action.
- 18 • **Court record:** Docketed in CGC-25-631801 and CGC-25-631802 public registers.
- 19 • **Pin cites:** related-case posture under California Rules of Court, rule 3.300.

20 **6. Exhibit 801-F: Porter Scott signature blocks and bar numbers**

- 21 • **Document:** Signature blocks, firm letterhead, and State Bar numbers on the noticed 801
- 22 filings and operative 802 defense filings.
- 23 • **Filing date:** Each filing date (801-A through 801-C; mirrored 802 papers).
- 24 • **Court record:** Appears on the face of each filed paper.
- 25 • **Pin cites:** Chad S. Tapp (SBN 214898); Tyler J. O’Connell (SBN 346673).

26 **7. Exhibit 801-G: MIL 6 (materials not produced in discovery)**

- 27 • **Document:** Defendant Subhi Abdelhalim’s Motion in Limine No. 6 to Exclude Recorded

Materials, Photographs, or Documents Offered by Plaintiff That Were Not Produced in Discovery.

- **Filing date:** January 17, 2025.
- **Court record:** Filed in *Rosario v. Abdelhalim* (CGC-21-594102); FSX Transaction No. 80936030.
- **Pin cites:** title; page 2, Section II.A; page 3, lines 1 to 5.

8. Exhibit 801-H: MIL 17 (alleged 911 log and audio)

- **Document:** Defendant Subhi Abdelhalim’s Motion in Limine No. 17 to Preclude Plaintiff from Using or Referencing an Alleged 911 Transcript Log and Audio Recording.
- **Filing date:** January 17, 2025.
- **Court record:** Filed in CGC-21-594102; FSX Transaction No. 80936053; clerk transcript pages 401 to 500, lines 1182 to 1331.
- **Pin cites:** page 3, lines 1261 to 1265; page 4, lines 1312 to 1314.

3. MAPPING EACH EXHIBIT TO THE AGUILAR FACTOR AND RANK-ORDERED CONTRADICTION NODE

A. AGUILAR FACTOR 1 (SAME PARTY OR PRIVIES)

Exhibits 801-E and 801-F supply the privity, counsel-identity, and related-case foundation. The 801 motions identify CSAA, Carbone, Chambers, Phillips Spallas, Navaratnasingham, and Reyna as moving defendants; CSAA is the operative defendant in 802; Porter Scott is signing counsel in both cases. The Verified Statement of Privity at filing item 08 supplies the same showing.

B. AGUILAR FACTOR 2 (POSITIONS TAKEN IN JUDICIAL PROCEEDINGS)

Exhibits 801-A, 801-B, and 801-C are positions taken in judicial proceedings within Department 301 of this Court. Exhibit 801-D is the order entering the position taken.

1 **C. AGUILAR FACTOR 3 (PARTY WAS SUCCESSFUL IN ASSERTING**
2 **THE FIRST POSITION)**

3 Exhibit 801-D is the May 12, 2026 minute order granting the 801 special motion to strike. The
4 acceptance prong is satisfied by the order itself.

5 **D. AGUILAR FACTOR 4 (TOTALLY INCONSISTENT POSITIONS)**

6 The seven contradiction nodes plus the Layer B and constructive petitioning Super Ranks in the
7 accompanying memorandum (Section VI) and the verbatim quotation set in filing item 07 demon-
8 strate the inconsistency between the noticed 801 positions and the operative 802 positions.

9 **E. AGUILAR FACTOR 5 (NO MISTAKE)**

10 The contradictions are structural across four serial 802 briefs by the same Porter Scott counsel.
11 The pattern, not any one stray statement, defeats any factor-five mistake argument.

12 **4. MAPPING EACH EXHIBIT TO THE RANK-ORDERED CONTRA-**
13 **DICTION NODES**

14 **1. Super Rank 0A (Layer B): investigation-duty vs. MIL truth-claims**

- 15 • **Subject:** Substantive truth-claim of nonproduction and unknown provenance in 801, versus
16 802 investigation-duty and readily-obtainable-evidence overlay.
- 17 • **801 exhibit support:**
- 18 • 801-G, MIL 6 (CGC-21-594102, FSX Tx 80936030).
- 19 • 801-H, MIL 17 (CGC-21-594102, FSX Tx 80936053).
- 20 • **802 exhibit support:**
- 21 • 802 Anti-SLAPP MPA, filed April 9, 2026 in CGC-25-631802, p. 5 (lines 885 to 905) and
22 p. 9 (lines 1216 to 1224).
- 23 • 802 CCP 436 MPA, filed April 22, 2026 in CGC-25-631802, pp. 6 to 7 (lines 613 to 629,
24 742).

25 **2. Super Rank 0B: constructive petitioning nexus**

- 26 • **Subject:** Legal nexus invoked in 801 and disowned in 802.

- **801 exhibit support:** 801-A, p. 11 (lines 1418 to 1424).
 - **802 exhibit support:**
 - 802 Anti-SLAPP MPA, Section III.D no-role heading (lines 837 to 840).
 - 802 Demurrer MPA, p. 14 (lines 1925 to 1927).
3. **Rank 1: in-court statements (factual petitioning vs. “interpretation”)**
- **801 exhibit support:** 801-A, pp. 9 to 11 (lines 1258 to 1290); 801-D order.
 - **802 exhibit support:** 802 Demurrer MPA, p. 9 (lines 1364 to 1374).
4. **Rank 2: pre-suit investigation (three mutually exclusive postures)**
- **801 exhibit support:** 801-A, p. 6 (lines 1065 to 1072); 801-D order.
 - **802 exhibit support:**
 - 802 Anti-SLAPP MPA, p. 9 (lines 1216 to 1232).
 - 802 CCP 436 MPA, pp. 6 to 7 (lines 613 to 629, 742).
 - 802 Anti-SLAPP Reply, p. 5, footnote 2.
5. **Rank 3: possession of silent-witness materials**
- **801 exhibit support:**
 - 801-A, p. 9 (lines 1262 to 1266).
 - 801-A, p. 6 (lines 1065 to 1072).
 - 801-B, pp. 3 to 4 (lines 681 to 690).
 - **802 exhibit support:**
 - 802 Anti-SLAPP MPA, p. 5 (lines 901 to 905).
 - 802 Demurrer MPA, p. 5 (lines 885 to 905).
6. **Rank 4: same jury, same evidence**
- **801 exhibit support:** 801-A, p. 3 (lines 729 to 738).
 - **802 exhibit support:**
 - 802 Anti-SLAPP MPA, p. 4 (lines 716 to 734).
 - 802 Demurrer MPA, p. 5 (lines 891 to 895).
7. **Rank 5: CSAA spoke and did not speak in court**

1 • **801 exhibit support:** 801-A, p. 6 (lines 1040 to 1042).

2 • **802 exhibit support:**

3 • 802 Anti-SLAPP MPA, Section III.D heading.

4 • 802 Demurrer MPA, p. 14 (lines 1921 to 1927).

5 **8. Rank 6: no investigation-file erasure**

6 • **801 exhibit support:** 801-A, p. 6 (lines 1065 to 1072); 801-D order.

7 • **802 exhibit support:**

8 • 802 Anti-SLAPP MPA, p. 9 (lines 1224 to 1232).

9 • 802 Demurrer MPA, p. 10 (lines 1511 to 1525).

10 **9. Rank 7: chain of custody**

11 • **801 exhibit support:** 801-A, p. 6 (lines 1067 to 1070); 801-C, p. 3.

12 • **802 exhibit support:** 802 Anti-SLAPP Reply, p. 5, footnote 2.

13 **5. MAPPING EACH EXHIBIT TO THE LOCK-POINTS**

14 Lock-Point 0 is the Layer B no MIL-reversal bar, supported by MIL 6 (Tx 80936030) and MIL
15 17 (Tx 80936053), and it bars crediting any 802 investigation-duty or readily-obtainable-evidence
16 theory to the extent that theory conflicts with those noticed MIL truth-claims.

17 **1. Lock-Point 0: No MIL-Reversal Bar**

18 • **Exhibit support:**

19 • 801-G, MIL 6, page 3, lines 1 to 5.

20 • 801-H, MIL 17, page 3, lines 1261 to 1265 and page 4, lines 1312 to 1314.

21 **2. Lock-Point 1: No-litigation-role bar**

22 • **Exhibit support:**

23 • 801-A, p. 6 (lines 1040 to 1042).

24 • 801-A, p. 9 (lines 1262 to 1266).

25 • 801-B, pp. 3 to 4 (lines 681 to 690).

26 **3. Lock-Point 1A: Constructive Petitioning Bar**

27 • **Exhibit support:**

- 801-A, p. 11 (lines 1418 to 1424).
- 802 Anti-SLAPP MPA, Section III.D no-role heading (lines 837 to 840).
- 802 Demurrer MPA, p. 14 (lines 1925 to 1927).

4. Lock-Point 2: No-unknowable-investigation bar

- **Exhibit support:**
- 801-A, p. 6 (lines 1065 to 1072).
- 801-A, p. 6 (lines 1067 to 1070).
- 801-C, p. 3.

5. Lock-Point 3: No-interpretation rebrand bar

- **Exhibit support:**
- 801-A, pp. 9 to 11 (lines 1258 to 1290).
- 801-D order.

6. Lock-Point 4: No-clean-verdict-vindication bar

- **Exhibit support:**
- 801-A, p. 3 (lines 729 to 738).
- 801-A, p. 6 (lines 1040 to 1042).

7. Lock-Point 5: No Investigation-File Erasure Bar

- **Exhibit support:**
- 802 Anti-SLAPP MPA, p. 9 (lines 1224 to 1232).
- 802 Demurrer MPA, p. 10 (lines 1511 to 1525).

6. AUTHENTICITY FOUNDATION

Each exhibit is authenticated by the accompanying Declaration of Franciscus Dylan Rosario (filing item 03) and supported by the Verified Statement of Privity (filing item 08). The exhibits are court records under Evidence Code section 452, subdivision (d), and are subject to immediate and accurate determination by resort to the SFTC portal under Evidence Code section 452, subdivision (h).

7. PARENT APPEAL ANCHOR

Rosario v. Abdelhalim, Cal. 1st Dist. Ct. of Appeal, Case No. A173827. The 802 defense filings themselves rely on A173827 (e.g., 802 Anti-SLAPP MPA at p. 1 footnote 1; 802 Demurrer MPA at p. 2 footnote 2). The related-case posture is established on the face of defense’s own 802 papers.